

Varieties of Mediating Activities and their Complementarity in the Cyprus Conflict

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1. Introduction

The intractable conflict on the divided island of Cyprus has attracted the attention of many official and unofficial third party actors. Yet, despite the continuous efforts of these intermediaries since 1960s, there is still no settlement achieved on the island.

The situation has become even more complicated after the Republic of Cyprus' (RoC) application to the European Union (EU) in 1990 to become a full member and its eventual accession to the EU. This has altered the dynamics of the conflict and became a catalyst for changing the status quo on the island. The current situation is an impasse and a disappointment especially to the Turkish Cypriot side.

The latest round of negotiations, which began in February 2004 and were assisted by the UN Secretary General (SG) Kofi Annan and his mediator Alvaro De Soto, resulted in failure after the Annan peace plan was rejected in the April 2004 referendum by the Greek Cypriot community. Nonetheless, the RoC, representing the Greek Cypriots in the current, de facto, situation, became a full member of the European Union in May 2004. The situation has entered a new stage with the joining of the RoC into the EU as a politically and physically divided state, while the Turkish Cypriot community living under the internationally non-recognized state of the Turkish Republic of Northern Cyprus (TRNC) was left out. In the coming months, the search for a political solution on the island will continue and most likely intensify with the progression of the EU accession negotiations with Turkey in 2005. Thus, the conflict will continue to attract the attention of a variety of third parties and will call for new mediation efforts.

Among these third parties, the United Nations (UN), the European Union (EU), and the US have always been the most interested players in the Cyprus conflict and will most likely continue to be major actors, extending their efforts to find a resolution to the conflict. With the multiplicity of intermediary actors involved in the conflict, one of the most critical

questions is whether the type of the third party intervention matches the needs of the conflict at that stage and whether the activities of these actors complement each other in terms of timing and sequencing.

In this paper, we address these questions by evaluating the activities of three major intermediaries (UN, EU, and US) since Cyprus' application to the EU for full membership in July 1990. We take this date as a starting point because after the application the nature of the conflict, the perceptions of the parties, and the stalemate that existed on the island until then have been altered. While doing this analysis, we refer to the "contingency approach" framework suggested by Keashly and Fisher.¹

2. Historical Background of the Cyprus Conflict

Cyprus was under Ottoman rule from 1571 until they handed over the administration of the island to the United Kingdom in 1878. The Treaty of Lausanne, signed in 1923 giving birth to the new Republic of Turkey, recognized the British sovereignty over the island. The emergence and escalation of the Cyprus conflict began in the 1950s when the separatist movements of EOKA, a nationalist Greek Cypriot organization advocating integration with the mainland Greece, began its fight against the British rule. The Turkish Cypriot community, on the other hand, was concerned about such desires and about their status being reduced to a minority on the island.

The situation was settled by the signing of the Zurich-London accords in 1959, which granted Cyprus its independence. The new Republic of Cyprus (RoC) was based on a power-sharing arrangement according to the proportionality principle. In addition, Britain, Greece, and Turkey signed the Treaty of Guarantee in 1960, which gave them a special status to protect the delicate balance on the island. Yet, these treaties could not prevent the outbreak of inter-group violence on the island in 1963 and its intensification in the following years.

The rising ethnic violence brought the UN peacekeeping force, UNFICYP, to the island in 1964. The intensification of violence was a major concern for Turkey, which led the policymakers in this country to begin considering a military intervention. Finally, the toppling of the Cypriot president Makarios in a coup --supported by the military junta in Greece-- triggered Turkey to undertake a military operation in 1974, relying on the provisions of the Treaty of Guarantee. After Turkey's intervention, the island became divided into two and a population exchange took place between the Greek Cypriot and Turkish Cypriot communities. The UN Resolution 353 of 1974 required Turkey to withdraw its forces from the island and was followed by an economic embargo introduced on the Turkish Cypriot side.

Several rounds of talks held between the Greek and Turkish Cypriot communities in the 1970s under the auspices of the UN produced high level agreements, which envisaged an independent and bi-communal federal Republic. These high level agreements constituted the basis of the subsequent negotiations, but they were not fully upheld by the parties. In 1983, the Turkish Cypriot side declared the Turkish Republic of Northern Cyprus (TRNC), recognized only by Turkey, and thus gradually moved away from a federal solution. UN backed negotiations did not bear any results due to entrenched differences in the perspectives of the parties on a number of issues such as security, territory, sovereignty, and political rights.

3. Variety of Third Party Actors and the Contingency Approach to Third Party Intervention

In intractable conflicts like Cyprus, often there is more than one third party involved in the conflict settlement efforts. Each third party has different characteristics and makes different contributions to a peace process. In the last decade, several scholars of international mediation have categorized the variety of intermediary roles. One such categorization was provided by Zartman and Touval, where they grouped the functions of a mediator into three modes: communicator, facilitator, and manipulator.² In the first mode, the mediator assists the

communication process between the parties. In the second mode, the mediator aims at generating mutually acceptable formulas for a negotiated solution. In the last mode, as a manipulator, the mediator uses its power to push and pull the parties towards an agreement.

Another useful categorization of various intermediary roles has been suggested by Kriesberg based on two dimensions; the type of mediating activity and the stage of the conflict (i.e. emergence, escalation, stalemate, and de-escalation).³ Kriesberg identified the types of mediator activities as follows: helping to arrange the agenda and to select negotiating parties, providing a safe space for meetings, conveying information between the parties, increasing resources for settlement, reframing the conflict as a joint problem to be solved, suggesting options, helping the parties discover new options, raising costs of failing to de-escalate, helping to create parity, helping the parties to implement agreements, and fostering reconciliation.⁴ According to Kriesberg certain third parties are more apt to play one or more of these roles, and some of these roles may be incompatible for a specific third party at a specific time.⁵ For example, raising the costs of failing to de-escalate is more successfully accomplished by a third party in the “manipulator” mode, because it requires leverage and resources. On the other hand, helping to arrange an agenda and suggesting options are roles played by a “formulator” type mediator. Finally, providing a safe space and conveying information are some of the important roles often best played by a “communicator” type third party.

Similar to Kriesberg, Keashly and Fisher have also suggested, in their “contingency approach” to mediation, that the type of third party intervention should match the characteristics of the conflict and what is needed for that conflict at that particular stage and time. Their rationale was that each stage of the conflict (i.e. discussion, polarization, segregation, and destruction) requires a different type of third party technique. At the discussion stage, a conflict just starts to escalate as the communication difficulties begin to

occur between the conflicting parties. Yet, at this stage their relationship is still in a good shape. So, a third party would be most useful if it facilitates communication between the parties and clarifies the substantive issues for the parties to move forward the negotiation on these issues. At the stage of polarization, relations between the parties begin to deteriorate, trust begins to erode, and negative, enemy, images begin to emerge. For this stage, Keashly and Fisher recommend mediation combined with third party consultation that aims at improving relations and rebuilding trust.⁶

At the third stage of conflict escalation –segregation-- hostility between the parties dominate the situation. At this stage the enemy images begin to solidify and parties see each other as a threat to their security and existence. Keashly and Fisher recommend power mediation to control the conflict escalation spiral for this stage and to convince the parties that an agreement on substantive issues is possible. At this stage, third parties use their leverage on the parties through positive (i.e. rewards such as economic aid) and negative inducements (i.e. sanctions). As an accompaniment to power mediation, third party consultation focusing on improving relations could be a complementary third party activity at this stage.

In the last conflict escalation stage, destruction, parties try to hurt and eliminate each other by often resorting to violence. Keashly and Fisher argue that the appropriate form of third party intervention at this stage is peacekeeping in order to separate the fighting parties and to bring the violence under control before moving on to negotiations.

Thus, according to Keashly and Fisher, the third party intervention is likely to result in failure if undertaken with inappropriate interventions at the wrong conflict stage.⁷ Through this theoretical prism, the next section of this paper will analyze what type of third party role each actor (i.e. EU, US, and the UN) has played in the Cyprus conflict between 1990 and today, and how complementary these third party activities have been, in light of the historical development of the conflict summarized in section 2. However, before going on to the

discussion of the specific third party activities, we should briefly mention the stages that the Cyprus conflict had gone through.

The Cyprus conflict escalated up to the fourth stage, destruction, with widespread inter-communal violence in the 1960s and the following Turkish military intervention in 1974. The widespread violence on the island came under control since then. However, the conflict never de-escalated below the segregation stage in the last three decades despite the elimination of widespread inter-communal violence. Furthermore, since 1974, from time to time it fluctuated between segregation and destruction stages with restricted outbreaks of clashes such as in the case of the green line incident of January 1996.⁸ The two communities on the island continue to see each other as a threat to their “own” security and existence, and mistrust characterize the nature of relations between the parties. Moreover, the negative images of the “other” have been further entrenched with the nationalistic policies and education systems on both sides of the island. After 1974 the new generations on the both sides of the island were raised in complete segregation without any experience of co-existence.

4. An Overview of the Third Party Activities in the Cyprus Conflict

This section will provide an overview of the third party activities in the Cyprus conflict since the RoC’s 1990 application to the EU. This application ended the stalemate situation existing on the island until then and triggered a new series of events that put the conflict on another escalation path. Table I below summarizes the key activities of the three intermediaries, the EU, US, and the UN. Then, we go on to a brief discussion of these interventions before we elaborate on their complementarity in the next section.

Table I: Selected Third Party Activities in Cyprus 1990-2004

	EU	UN	US
1990	EU receives Cyprus' application for membership	UN mediated inter-communal talks reach an impasse	Stresses the need for creating confidence building measures (CBM) and encourages the UN sponsored direct negotiations
1991		SG Ghali formulates the "set of ideas"	President G. H. Bush supports the Turkish proposal for quadripartite talks.
1992		UN SG Ghali presents the "set of ideas" for negotiations	
1993	June--European Commission issues Opinion on Cyprus' application	May-June UN initiates talks in New York on confidence building measures (CBM)	
1994	European Council includes Cyprus in the next enlargement wave European Court of Justice issues a ban on the TRNC exports to the UK markets	UN sponsored talks on CBMs reach an impasse	USA and UK intervene to break the impasse in the CBM talks
1995	Turkey signs the Customs Union agreement with the EU		
1996	Greece vetoes the financial protocol agreed by the EU for Turkey		US deplores the violence on the UN buffer zone and calls for the start of direct talks
1997	July--EU releases the Agenda 2000 document Dec.--Luxembourg Summit decides to start negotiations with Cyprus and no candidacy status granted to Turkey	July-- Cypriot leaders Clerides and Denktash meet face to face in New York and Geneva under UN SG's presence.	June--Clinton assigns Holbrooke as his special envoy to Cyprus July--US brokers a joint statement of principles between Greece and Turkey emphasizing settling their disputes peacefully
1998	EU starts accession negotiations with Cyprus		Holbrooke engages in shuttle talks between the parties in Cyprus and introduces three proposals US opposes deployment of S-300 missiles on the Greek Cypriot side
1999	EU Helsinki summit states that a solution in Cyprus is not a	December--Resumption of proximity talks under the auspices of	

	precondition for its accession while granting Turkey the status of EU candidacy	the UN SG	
2000	EU includes a settlement effort in Cyprus as a short-term goal in Turkey's "accession partnership document"	November-- Denktash withdraws from the proximity talks	
2001	Oct.--EU announces that it will accept any settlement in Cyprus regardless of its accordance with the existing EU laws	September--Kofi Annan's call to the table is rejected by Denktash November--Denktash and Clerides start direct talks	US encourages Denktash to go back to the negotiation table, while not taking an active role and placing the main responsibility with the EU
2002	Dec.- Cyprus signs the accession treaty at the Copenhagen summit The decision on the accession negotiations with Turkey will take place in 2004	Sept.- Oct. Annan formulates a new plan and meets with the Cypriot leaders The plan is modified in December in light of demands coming from both Cypriot sides	Dec.- US welcomes EU decision on Cyprus' accession and the setting of a date on which the accession negotiations with Turkey would begin
2003	Apr.--RoC signs the Treaty of Accession to the EU	Feb.--Annan Plan is modified for the third time. Mar.--An agreement could not be reached in the Hague	
2004	May--Cyprus becomes a full member of the EU Dec--EU declares accession negotiations with Turkey will start in October 2005	Feb.-Apr. Talks on the Annan Plan resumes in February and results in the April referendum--ratified by the Turkish side, rejected by the Greek side.	Turkey asks for Colin Powell to facilitate the talks leading to the referendum

4.1. EU intervention in the Cyprus conflict

The EU involvement in the Cyprus conflict intensified with the RoC's application for EU membership in July 1990 on behalf of the whole island. The Greek and Greek Cypriot governments thought that the EU accession process would serve as a catalyst for the unification of the island.⁹ Indeed, the Turkish Cypriots and Turkey, according to whom the

RoC only represented the Greek Cypriot side, were alarmed by the unilateral application of the RoC, and questioned the legitimacy of the application based on the 1960 Constitution.¹⁰

Thinking that the membership of the RoC would help a political settlement on the island, the EU Commission, in June 1993, encouraged the start of accession negotiations with the RoC at a future date, while expressing support for the UN SG's ongoing mediating efforts. At the same time, the EU Commission refrained from giving a blank check to the RoC for full membership, by stating that "as soon as the prospect of a settlement is surer, the Community is ready to start the process with Cyprus."¹¹ With this Opinion, the Commission created an incentive for the Greek Cypriot side to seek a political solution. However, at the Corfu summit of 1994, the European Council Presidency conclusions stated that "the next phase of enlargement of the Union would involve RoC".¹² Thus, at the end of the 1994 summit, for the first time, the requirement of a political settlement on the island was separated from the prospect of RoC's accession.¹³ Nevertheless, the European Council Presidency Conclusions mentioned a preference for a political settlement on the island in line with the UN Resolutions and high level agreements.¹⁴

At the 1997 Luxembourg summit, the European Council decided to start accession negotiations with the RoC in the spring of 1998, while not granting Turkey an official candidacy status. The paragraphs concerning Turkey in the summit conclusions stressed that Turkey should be working towards a political settlement in Cyprus under the aegis of UN negotiations in order to strengthen its own relations with the EU.¹⁵ Later on, at the Helsinki summit of 1999, the European Council made it clear that a political settlement in Cyprus is not a "precondition" for accession.¹⁶ At the same summit, the Council granted official candidacy status to Turkey while emphasizing the peaceful resolution of the Aegean disputes with Greece and the conflict in Cyprus. The decisions taken at these EU summits signaled that

the EU drew on the RoC's and Turkey's aspiration to be included in the enlargement process as a leverage to move the parties towards a political settlement in Cyprus.

Yet, contrary to the EU's expectations, the EU enlargement policy towards the RoC and Turkey between 1994 and 1999 further escalated and complicated the conflict.¹⁷ During this period, polarization between the parties in the conflict increased and the situation on the island moved towards a stage of "destruction." This escalatory tendency in mid-1990s can be observed in incidents such as the outbreak of violence on the green line, the hardening of the Turkish Cypriot position in the negotiations, the steps taken for integration between Turkey and the TRNC after the disappointing Luxembourg summit decisions, and the crisis over the Greek Cypriot purchase of the S-300 missiles from Russia. In addition, the overall Turkish-Greek relations deteriorated during these years with the Kardak/Imia crisis in the Aegean Sea that brought the parties to the brink of war in 1996 and the crisis over the Greek involvement in the PKK leader Abdullah Ocalan's run off in early 1999.

While the conflict evolved from a stalemate phase to escalation, EU institutions were not capable of controlling the escalation because of their use of limited de-escalatory conflict management tools. The EU primarily employed "structural prevention" mechanisms in the form of negative and positive inducements to the parties without undertaking any significant "conflict transformation" attempts aiming at improving relations and reconciliation between the parties in Cyprus.¹⁸ "Structural prevention" or "structural intervention" is solely based on the use of persuasion, incentives, and disincentives, in other words carrots and sticks, to manipulate the context in order to create consequences for the parties. This tool *per se* is often inadequate for intractable conflicts when not used in conjunction with problem-solving or conflict transformation tools in order to build relations and change the perceptions and attitudes of the parties.¹⁹ In the Cyprus case, not only did the EU relied mainly on this limited tool, but also it was not effective in using the incentive mechanism in an efficient and

impartial way, because they failed to create a situation in which the incentives worked equally effectively for both sides.

There are several reasons why the EU failed to use this inducement mechanism effectively. The EU basically had three options in order to encourage the Greek Cypriot side to respond to the EU's inducements. These were: a) recognition of the TRNC as a separate political entity on the island, b) making Turkey and the RoC full members simultaneously, and c) postponing RoC's accession to the EU until a political settlement is reached between the parties. The first option would not be considered at all, because such an action would contradict with the UN Resolutions. The second option was not found realistic by the EU given Turkey's lack of fulfillment of the Copenhagen criteria at that time. Thus, the most viable option for EU to establish its leverage on the Greek Cypriot side was the last one. Yet, this last option encountered a structural challenge due to Greece's veto power, which was acquired after its accession to the EU in 1981. When Greece became a member of the EU, no conditions were attached to its membership with regard to its influence on the EU decisions concerning Cyprus or Turkey. Faced with the Greek veto threats to block the entire enlargement process, the other EU members, who were not initially in favor of accepting a divided Cyprus into the EU, gave way to Greek pressure to remove the precondition of a political settlement in Cyprus by the time of the 1999 Helsinki summit. The EU's inducements attached to the enlargement process were more influential on Turkey --especially as the time pressure grew stronger with the approaching accession date of the RoC--because of the high priority Turkey had attributed to the EU membership prospects. Thus, the EU was structurally unequipped to play an impartial third party role in the Cyprus conflict, which ultimately prevented its having an equal influence on all parties involved in the conflict.

In December 2001, talks between the two sides resumed and the conflict entered into a de-escalation path. Direct talks between the Greek Cypriot leader Clerides and Turkish

Cypriot leader Denktash began in December 2001 with the UN mediator Alvaro De Soto's presence as a note-taker. This process culminated in the formulation of the Annan peace plan, which dominated the search for settlement in Cyprus. We will discuss the UN efforts and the complementarity of the UN and the EU efforts in the following sections of this paper.

As far as the EU's involvement during this period is concerned, the EU declared its support to Annan's efforts and continued to use its enlargement leverage mainly on Turkey through closely linking Turkey's candidacy process with the Cyprus question, while being unable to exert the same pressure on the Greek Cypriot side. This policy was apparent for example in the Accession Partnership Document adopted in March 2001 by the EU, which mentioned efforts towards a political settlement in Cyprus as one of the short-term tasks that Turkey has to fulfill for membership. Neither the UN mediated efforts, nor the EU leverage on Turkey resulted in an agreement by the critical turning points in the enlargement, such as the Copenhagen Summit in 2002, the RoC's signing of the Accession Treaty in April 2003, and the RoC's becoming a full EU member in May 2004.

The EU realized the unintended consequences of its partial use of leverage only after the results of the referendum in April 2004, in which the Annan Plan was rejected by an overwhelming majority of the Greek Cypriots. After this, the EU tried to shift its weight more on the Greek Cypriot side by trying to raise the costs of not compromising on the UN sponsored plan. The EU Commission tried to do this by rewarding the Turkish Cypriot side such as through direct financial aid, introducing direct commercial flights to the Turkish side, easing the embargo on the Turkish Cypriot imports.²⁰ However, none of these attempts have been realized mostly due to the Greek Cypriot vetoes in the EU. Thus, after 2004, the EU was unable to play an effective manipulator role based on a power brokerage model.

Thus, one can characterize the third party role played by the EU as raising costs of not settling the conflict and adding resources to help the settlement through for example offering

an economic aid package to the Turkish Cypriot side. EU did not play a “formulator” role and preferred to limit its activities to a “manipulator” role by using accession as an incentive on the parties. However, this was far from an effective manipulator mode, because the EU’s leverage did not pay off on the Greek Cypriot side because of Greece’s membership and later on because of the guarantee of full membership given to the RoC before a political settlement is reached on the island.

4.2 The UN intervention in the Cyprus conflict

The UN has been involved in the Cyprus conflict since the 1960s in various capacities. Besides the UN-led peacekeeping force deployed on the green line in 1964, the organization has also played a critical third party role in assisting negotiations between the parties. After 1990, both of the Secretary Generals (SG), Boutros Boutros-Ghali and Kofi Annan, were closely involved in the Cyprus conflict. Before summarizing these mediating activities between 1990 and 2004, it should be mentioned that overall, the UN has predominantly played two types of mediating roles: a “formulator” role by getting involved in the substance of the negotiations and a “communicator” role. The UN mediating activities in these modes included helping parties to arrange the negotiation agenda, drafting proposals, providing a safe space for meetings, conveying information between the parties, suggesting options, and helping the parties discover new options.

One of the important occasions in which the UN SG played a formulator role was in 1992 and 1993, when Boutros-Ghali came up with the “set of ideas,” based on the previous SG Perez de Cuellar’s mediation efforts. These ideas envisioned a solution in Cyprus based on a bi-communal federation. Although the parties came very close to an agreement at the end of the negotiations, it fell short of producing an official accord.

After the negotiations over the ‘set of ideas’ failed, one of the important conclusions Boutros-Ghali reached was that trust building between the parties is essential before proceeding with negotiations over the substantive issues. Thus, in 1993 he proposed a set of “confidence building measures” (CBM) and opened these ideas for negotiations.²¹ By emphasizing the importance of building relations and working on the issues of common interest, Boutros-Ghali not only shifted towards a more gradual strategy in his mediating efforts, but also tried to incorporate a conflict transformation approach.²² However, although the purpose was to build trust by these CBMs, the negotiations over the measures continued in a polarized environment not conducive to trust building and did not achieve their goal.

UN mediated talks restarted in July-August 1997 in New York and Geneva, this time under SG Kofi Annan’s leadership and with the declared support of the EU and the US. The talks ended because of the Turkish Cypriot leader Denktash’s reaction to the Agenda 2000 document released by the EU. After the granting of the EU candidacy to Turkey in the December 1999 Helsinki Summit, Annan thought that the timing became ripe for more talks in Cyprus as the Turkey-EU relations eased down and the deadline of RoC’s EU accession came closer.²³ Thus, he conducted five sessions of proximity talks with the parties separately between December 1999 and November 2000. These talks failed as well and ended after the fifth round with the rejection of the Turkish Cypriot leader Denktash to another round due to his demand for an equal status for the Turkish Cypriot side as a precondition to future talks.

When the direct talks resumed between the two Cypriot leaders Clerides and Denktash in December 2001, the UN intermediary role in the early stages was limited to a communicator role. UN special envoy Alvaro de Soto participated in these meetings simply as a “note-taker” to gather information without intervening in the substance. It was in mid-2002 that the UN intermediary role switched back to a “formulator” mode, after observing that the direct negotiations among the parties were fruitless. At this point, de Soto started making

substantive suggestions and this formulator role of the UN culminated in Annan's putting forward of a comprehensive peace proposal on 11 November 2002 and offering a revised version in 10 December 2002.²⁴ However, no agreement was reached between the parties before the Copenhagen Summit of the EU, although the Greek leader Clerides was inclined to accept the plan. Negotiations over the plan resumed in January 2003, but again reached an impasse in March 2003. It was only after a series of domestic political changes in the TRNC and Turkey that the parties wanted to reconsider the plan and once again the negotiations started in February 2004. This process ended with a referendum by the two Cypriot communities in April 2004.

Thus, SG Annan too, like his predecessors, continued using a combination of 'formulator' and 'communicator' modes as a third party. As part of the formulator role, the UN SG Annan created a very detailed and comprehensive peace plan in consultation with the parties after many go-betweens in order to be able to formulate a mutually acceptable plan. As part of this formulator role, the UN SG and his special envoy shaped the negotiation agenda, reframed the suggestions in the plan as a joint gain for the parties rather than a loss, suggested options and alternatives, revised these options as they received inputs of the parties in a number of revised versions of the plan, and tried to come up with ideas that would help the implementation of the plan--importantly by providing that an accepted plan is not nullified by the EU regulations after RoC's accession to the EU. In the communicator mode, the UN SG and his envoy provided a safe space for the meetings of the parties, gathered and conveyed information between the parties either in separate meetings or in joint meetings with the parties.

4.3 The US intervention in the Cyprus conflict

The other important actor that has played a third party role in the Cyprus conflict is the United States. Different from the EU and the UN, the US mostly played a third party role by

intervening in particular crises in order to prevent the Greek-Turkish conflict from further escalating and upsetting the delicate balance in the region. Thus, the US attention in the conflict has usually been in an ad hoc and short-term manner.

Besides being a crisis mediator, US also occasionally played a “formulator” and a “communicator” role through appointing special envoys to the island to bolster the UN mediated negotiations. The most important and high level intervention within this period was the appointment of Richard Holbrooke by President Clinton as a special envoy to Cyprus in 1997. This can be seen as a response to the escalation of violence in Cyprus on the green line and the increasing level of polarization as a result of the EU process. Holbrooke formulated a number of proposals --one of them being a Dayton style quadri-partite conference-- based on the notion of the mutual recognition of the parties’ sovereignty in a bi-zonal federation.²⁵ Holbrooke’s mediating efforts reached an impasse when the Turkish Cypriot leader Denktash put forward the conditions of international recognition of the TRNC and the RoC’s withdrawal from the negotiations as it became apparent that they were going to join the EU.²⁶

After Holbrooke’s failed mediating attempts, although US continued to encourage the parties to engage in talks, it did not appoint another high level mediator and from 2001 on left the main responsibility to resolve the Cyprus complication to the EU, which now had a more vested interest.

Thus, interestingly, other than in crisis situations, the US could not play a manipulator role in the Cyprus conflict, despite the expectations from a superpower. For example, in the Cyprus case the US could not back the Holbrooke plan with effective carrots and sticks in order to raise the costs of a non-settlement on the parties. The only tool that the US had in this mode, which it deployed consistently, was to push the EU to consider Turkey's candidacy for EU membership on the same basis as other candidate countries including the RoC.²⁷

5. Evaluating the Sequencing and Complementarity of the Third Party Roles in the Cyprus Conflict

We have suggested in the previous section that the EU's intervention between 1994 and 2000 further escalated the conflict and that it did not go beyond using enlargement as an incentive mechanism. In this paper, we also suggest that the EU, UN, and US efforts were not necessarily complementary in addressing this escalation and in facilitating a resolution. If the sequencing of the EU, UN, and US activities over Cyprus were carried out in a more complementary manner, these efforts could have produced more desirable outcomes.

In light of the following occasions, especially between 1990 and 2001, one rarely observes complementary efforts across the three potential intermediaries. To start with, in July 1990, the UN mediation effort was interrupted because of Turkish Cypriot reaction to RoC's unilateral application to the EU.²⁸ The EU accepted to consider this application at a time when the UN mediation efforts were going on. Still, despite this momentary reaction by the Turkish Cypriot side, until 1994 the EU decisions did not significantly endanger the UN activities as the talks between the two communities over the set of ideas continued in 1992. The EU Commission's opinion encouraging the UN efforts and pushing the RoC for a political settlement was another indication that at this point these two actors were not out of sync completely. The EU Commission's Opinion signaled that by not taking sides yet and by being willing to use its leverage through its enlargement policy, the EU still had the potential to complement the UN's formulator role as a third party in a manipulator fashion.

However, beginning with 1994, the EU gradually ruled itself out as an impartial and effective third party in a manipulator fashion by deciding not to use its leverage on the Greek Cypriot side, first with the decision to include RoC in the coming enlargement wave and second by removing the precondition of a political settlement on the island. Therefore, the EU did not put itself in a position to effectively support the UN formulator role as a powerful and

impartial third party capable of using leverage to push the parties towards a settlement. From 1994 onwards, seemingly by taking a side, the EU further escalated and polarized the conflict and thus made the situation less conducive to the entry of third parties. Consequently, despite the deterioration of the situation, no significant third party attempts took place during this period until the UN and US intermediary attempts in 1997.²⁹ Furthermore, the timing of several EU decisions in the enlargement process was counterproductive to the UN's efforts.

There were several occasions in which the sequencing of the decisions and third party activities negatively affected the UN efforts. In the UN sponsored July and August 1997 talks in New York and Geneva, the Turkish Cypriot side showed reluctance to commit to any agreement by finger pointing to the EU's Agenda 2000 document released in July 1997 as the source of their frustration.³⁰ Coupled with the Luxembourg Summit conclusions disappointing Turkey, the Turkish Cypriot and Turkish sides' positions in the conflict hardened as they began insisting more rigorously on the recognition of the sovereignty of the TRNC and later on a "loose confederation" as a precondition to restart the negotiations.

At the same time, in 1997 the US decided to take a more active role as a third party in the wake of the deteriorating situation in Cyprus. The US decision coincided with the UN SG's mediation efforts in 1997 to reduce the tension between the sides. It was apparent in 1997 that there was a need for an impartial third party who could use leverage on both sides effectively in order to both decrease the level of polarization and to urge progress in the talks. US was capable of playing this third party role. However, one of the factors constraining the success of the US third party efforts was the EU decisions regarding enlargement. For example, Holbrooke was frustrated that the EU accession negotiations with Cyprus were carried out without a prospect of candidacy given to Turkey.³¹ Therefore, according to Holbrooke the EU was not perceived as an impartial third party. One can conclude from Holbrooke's statements that the EU process incapacitated the reward mechanisms of the US

on the parties since the US side-payments could not be more attractive than the benefits of EU membership to the Greek Cypriot side.

The intermediary activities began to be more complementary only after 2001, especially in terms of sequencing. This can be clearly observed that the EU and UN efforts became more coordinated at the end of 2001. The revisions and the negotiations over the Annan plan were timed by the UN SG according to the key turning points in the enlargement EU process. For example, first, in 2001 October, the EU Commission President Prodi declared that the EU would “accommodate whatever arrangements the parties themselves agree to in the context of a political settlement” under the UN sponsored talks even if some of the agreed points contradict with the existing EU regulations.³² By making this statement, the EU stated that it does not intend to challenge the substance of the UN formulated peace plans. This declaration by the EU in October helped the Turkish Cypriot leader Denktash initiate direct talks with the Greek Cypriot leader in November 2001 for the first time since 1997.³³

A second attempt towards making UN and EU efforts in Cyprus more complementary happened just before the Copenhagen Summit in 2002. The UN SG released the first version of his plan in November 2002 and put forward the revised version, based on the modifications he gathered from both sides, two days before the December 2002 Copenhagen Summit with the hope of combining the proposal with the EU’s enlargement incentive. The US efforts geared towards the Copenhagen summit was also in sync with the UN search for a solution. At this point, the US continued its role as an impartial third party by continuously urging the EU that it should seize the opportunity to solve the Cyprus problem and the candidacy issue of Turkey simultaneously in the Copenhagen summit.³⁴ Despite this encouragement, the EU did not grant a date to start the negotiations with Turkey in 2002. Although this decision was due to reasons other than Cyprus, its affect was not positive in the negotiations of the SG Annan’s Plan.

After 2002, the UN SG continued to time his intermediary activities with the EU enlargement agenda, such as in 2003 in the Hague before the signing of the Treaty of Accession by the RoC; and in 2004 in Birkenstock before the full membership of RoC into the EU was realized. However, in neither of these occasions the sequencing efforts with the EU's enlargement incentives paid off. The inflexible position of the Turkish Cypriot side until the end 2003 softened with a series of domestic political changes both in Turkey and in the Turkish Cypriot side by the time the parties returned to the negotiations in February 2004. Yet, at this point the Greek Cypriot position became more inflexible because of the election of the hardliner Papadopoulos and the raising expectations of becoming a full member of the EU, regardless of a settlement in the conflict, on the Greek Cypriot side. This attitude was clearly visible in the April 2004 referendum of the Annan Plan, which resulted in the rejection of the plan by an overwhelming majority on the Greek side, although it was accepted in the Turkish side. Thus, despite the successful sequencing between the various intermediaries, the incentives to accept the Annan Plan on the Greek Cypriot side were seriously eradicated. Although the US, the EU, and the UN simultaneously considered reintroducing such incentives on the Greek Cypriot side in the aftermath of the referendum, such measures has not changed the situation considerably yet.

6. Conclusion

According to the contingency approach, conflict at the segregation stage requires an effective third party in a “manipulator” mode to complement the “formulator” and “communicator” functions. In this paper we discussed that neither the US nor the EU played this role successfully in the Cyprus conflict. The UN served as an impartial third party in its communicator and formulator modes. SG Annan, after shuttling back and forth many times between the parties, made sure that each party's sensitivities and priorities were equally

addressed in the comprehensive peace plan he formulated. However, the UN neither had the resources to increase the costs of declining a settlement or rewarding the parties' concessionary moves, nor acquired the resources to enlarge the pie to facilitate the acceptance and the implementation of the plan. Therefore, the UN efforts had to be effectively backed by a power broker that could introduce positive or negative inducements for both of the parties.

Initially, the EU was in a position to play this role. As a matter of fact, in 1990 with the RoC's application, the stalemate in the Cyprus conflict was challenged and thus, the situation became ripe for third party intervention. However, with the decisions the EU made starting in 1994, it missed this ripe moment and the EU decisions not only escalated the conflict, but also resulted in the eradication of its capability to play an impartial manipulator role. The rejection of the Annan Plan by the Greek Cypriots in April 2004 referendum was the point in case, which demonstrated the failure of the EU's one sided use of structural incentives. The US, the other actor who had the power to be a manipulator, attempted to mediate, but eventually found its role being reduced due to the EU's enlargement decisions.

From 1990 onwards the EU enlargement process with the RoC and Turkey dominated the evolution of the Cyprus conflict and any search for a comprehensive peace settlement on the island. Given this overall picture, the UN and the US tried to interweave their intermediary efforts according to the EU enlargement timetable. However, the EU was the main gavel holder and although the UN and the US were partly successful in synchronizing their attempts with the EU, especially after 2001, this improvement in sequencing was not sufficient to move the parties towards a peace agreement.

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- ² William Zartman and Saadia Touval, "International Mediation in the Post Cold War Era" in Chester Crocker, Fen Osler Hampson, and Pamela Aall, eds., *Managing Global Chaos: Sources of and Responses to International Conflict* (Washington, DC: United States Institute of Peace Press, 1996), pp. 445-61.
- ³ Louis Kriesberg, "Varieties of Mediating Activities and Mediators in International Relations" in Jacob Bercovitch, ed., *Resolving International Conflicts: The Theory and Practice of Mediation* (London: Lynne Rienner Publishers, 1996).
- ⁴ Kriesberg, (1996), p. 224, and also Louis Kriesberg, "Mediation and the Transformation of the Israeli-Palestinian Conflict," *Journal of Peace Research* 38, no. 3 (2001): 373-92.
- ⁵ Kriesberg, (2001), p. 378.
- ⁶ See Keashly and Fisher, (1996).
- ⁷ Ibid.
- ⁸ In January 1996, violence erupted on the green line separating the two communities, which resulted in the killing of one Greek Cypriot youth by the Turkish Cypriot demonstrators.
- ⁹ See p. 279 in Meltem Muftuler-Bac and Aylin Guney, "The European Union and the Cyprus Problem 1961-2003," *Middle Eastern Studies* 41, no. 2 (2005): 275-87.
- ¹⁰ According to the 1960 Constitution, RoC cannot become a member of any international organization in which Greece and Turkey are not members. See Muftuler-Bac and Guney, (2005), p. 280.
- ¹¹ The full text of the EU Commission's Opinion on the Application by the Republic of Cyprus for Membership-Extracts is available at http://europa.eu.int/comm/enlargement/cyprus/op_06_93/index.htm
- ¹² The full text of the Corfu Summit European Council Presidency conclusions can be found at http://ue.eu.int/ueDocs/cms_Data/docs/pressData/en/ec/00150.EN4.htm
- ¹³ For further detail on how EU dealt with the Cyprus conflict during this period, see Nimet Beriker and Doga Ulas Eralp, "Assessing Conflict Resolution Potential of the EU: The Cyprus Conflict and Accession Negotiations," *Security Dialogue* (forthcoming).
- ¹⁴ By high level agreements, the European Council refers to the agreements between Greek and Turkish Cypriot leaders in 1977 and 1979, which agreed on an independent, non-aligned, bi-communal, and federal Republic.
- ¹⁵ For the full text of the Luxembourg summit conclusions see article 35 at www.ue.eu.int/ueDocs/cms_Data/docs/pressData/en/ec/032a0008.htm
- ¹⁶ See the Helsinki European Council Presidency Conclusions, article 9 (a) at www.ue.eu.int/ueDocs/cms_Data/docs/pressData/en/ec/ACFA4C.htm
- ¹⁷ Several scholars have discussed how the EU enlargement process have further complicated and made the resolution of the Cyprus conflict more difficult. For example, see Beriker and Eralp (forthcoming) and Nathalie Tocci, "EU Intervention in Ethno-Political Conflicts: The Case of Cyprus and Serbia-Montenegro," *European Foreign Affairs Review* 9 (2004): 551-73.
- ¹⁸ For a more detailed reading of the conflict management tools used by the EU to deal with the Cyprus conflict, see Beriker and Eralp (forthcoming).
- ¹⁹ For further information on the structural and conflict transformation paradigms of third party intervention and how they complement each other, see Chester Crocker, Fen Osler Hampson, and Pamela Aall, eds. *Herding Cats: Multiparty Mediation in a Complex World*, (Washington, DC: United States Institute of Peace Press, 1999), pp. 20-29.
- ²⁰ See "Yildirim: US Receptive to Direct KKTC Flights", *Turkish Daily News*, 25 May 2004 and "Papadopoulos in Bid to Avoid KKTC Recognition," *Turkish Daily News*, 14 June 2004.
- ²¹ For the full list of these confidence building ideas, see the UN Secretary General's report S/26026.
- ²² By a conflict transformation approach, we refer to a mediation paradigm based on the notions of changing hostile perceptions and attitudes of the parties, and helping parties reframe their conflicts in a positive sum framework. This approach advocates direct communication and interaction between the parties in order to transform their conflictual relationship.
- ²³ See the UN Secretary General's Report titled "Report of the Secretary General on His Mission of Good Offices in Cyprus." S/2003/398. (United Nations Security Council, 2003).
- ²⁴ Annan Plan was one of the most comprehensive peace plans offered by the UN. It was based on a compromise formula within the general understanding of a bi-zonal, bi-federal Cypriot state. See Ibid., p. 3.
- ²⁵ See p. 567 in Meltem Muftuler-Bac, "The Cyprus Debacle: What the Future Holds," *Futures* 31 (1999): 559-75.
- ²⁶ See the anonymous news report titled "Impasse in Cyprus Talks, Says Holbrooke," *Financial Times*, 5 May 1998 for more information on Holbrooke's mediation efforts in Cyprus.
- ²⁷ See Ibid. for the statements of Richard Holbrooke concerning Turkey's membership.
- ²⁸ See the text of the briefing released by the White House Press Secretary "White House Office of the Press Secretary Text of a Letter from the President to the Speaker of the House of Representatives and the Chairman of the Senate Foreign Relations Committee", 30 August 1990.

²⁹ In 1996, violent activities along the green line were an indication of increasing polarization and the precarious situation on the island. The polarization increased with the decision of the TRNC and Turkey to take steps towards integration after the disappointing Luxembourg summit.

³⁰ See paragraph 6 in the UN Secretary General's Report titled, "Report of the Secretary General on His Mission of Good Offices in Cyprus" S/1997/973, (United Nations Security Council, 1997).

³¹ *Financial Times*, 5 May 1998.

³² See the text of the speech given by the then President of the European Commission, Prodi, at the House of Representative of Cyprus on 25 October 2001.

³³ See p. 103 in Erdal Guven, *Cyprus: From Helsinki to Copenhagen* (Helsinki'den Kopenhag'a Kibris), (in Turkish), (Istanbul: On Yayinevi, 2003).

³⁴ For more information on the US State Department statements, see "US Non Paper for Cyprus, Turkey," *Financial Times*, 20 November 2002.